THE STATE

versus

ELVIN DONGO SAUNGWEME

and

DELLION DAVID BALANI



HIGH COURT OF ZIMBABWE

TOMMASI J

HARARE, 23,24 & 25 February 2026

ASSESSORS: 1. T Kuwanda

2. H Mujaya

Opposed application

A Munyeriwa, for the State

M.D Hungwe with *B Maruva*, for the 1st and 2nd accused

TOMMASI J:

INTRODUCTION

[1] This is an application by the State to serve certain evidentiary material, namely videos, photographs, and the seizure confirmation receipt(s) on the accused in terms of section 382 of the Criminal Procedure and Evidence Act [Chapter 9:07] (The Act). The application was brought on 23 February 2023, the date indicated in the indictment for the trial but before the accused was asked to plead to the charge. The accused opposed the application.

BACKGROUND FACTS

[2] The accused persons are arraigned before this Honourable Court on a charge of murder as defined in section 47 of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. It is alleged that on 12 March 2020, the two accused, together with Munyaradzi Mawadze (whose trial has since been separated), or one or more of them, unlawfully caused the death of the now deceased by cutting his throat with a bread knife.

[3] The trial was scheduled to commence *de novo* on 23 February 2026. To this end the indictment, notice of trial, list of witnesses, list of proposed exhibits and a summary of the evidence each witness will give, was lodged with the Registrar on 20 February 2026. The accused on 23 February 2026, lodged with the registrar their defence outline and summary of the evidence their witnesses will give.

[4] On 23 February 2026, before the accused persons were called upon to plead, counsel for the State, Ms Munyeriwa, applied to serve certain evidentiary material on the accused namely, indication videos; photographs of the deceased body; and the seizure confirmation receipt(s).

[5] Mr Hungwe, counsel for the accused persons, opposed the application on the grounds that there has been non-compliance with sections 382 and 383 of the Act; that the accused would be prejudiced if the State were to be allowed to serve the documents at this stage of the proceedings on the accused as they already filed and served their document in terms of section 66(8) (defence outline and summary) of the Act; and that it would violate the accused's right to a fair trial.

[6] The court referred the matter for oral argument the next day i.e 24 February. The court reserved its ruling which was handed down on 25 February 2026. What follows are reasons for the ruling.

Non-compliance with sections 382 and 382

[7] Ms Munyeriwa candidly conceded that the state had not strictly complied with the requirements of section 382 of the Criminal Procedure and Evidence Act, as the documents she now wishes to serve on the accused were not served 10 days before the 23rd of February 2026. She, however, intimated that, upon reflection, she realised that the photographs and the video recordings were served on the accused. To prove such service, she handed the court a letter addressed to the registrar. She acknowledged that there is no proof that service of the seizure confirmation receipt(s) took place. She submitted that the accused received prior disclosure of the other evidential material. Counsel for the State submitted that the issues highlighted by the evidential material were not new to the accused. The court invited counsel to comment on a previous order in favour of the accused, directing the State to make disclosure[1]. She, however,

[1] See S v Mawadza and 2 Ors HH765-22

HIGH COURT OF ZIMBABWE
Criminal Division
ISSUED
05 Mar 2026
HCHCR977/26
HARARE
JUDICIAL SERVICE COMMISSION

was not aware of this order but submitted that the State must have disclosed the documents therein or else the matter would not have proceeded to trial.

[8] Mr Hungwe, referring to the previous order for disclosure, argued that this was indicative of the State's reluctance to disclose. He further submitted that it cannot be inferred that disclosure was made merely because a court order to this effect was granted. He maintains that there has been non-compliance and that the State had failed to comply with the provisions of section 382 of the Act and that there is no cogent proof of service as is required in section 383 of the Act.

[9] Section 382 of the Act provides that documents which are required to be served upon an accused shall be delivered to the accused at least ten days specified in the document for his trial. Proof of service may be a return of the mode of service by the officer tasked with this duty[2] which would constitute *prima facie* evidence of proof of service. Section 383 makes provision for poof of service by way of affidavit, signed before a justice. A letter addressed to the Registrar does not constitute such proof and as correctly pointed out by Mr Hungwe, it cannot be inferred that the State indeed disclosed as per the court order.

[10] There is no return of service or affidavit placed before this court as proof of service. The peremptory wording of the section underscores the centrality of timely disclosure and the State cannot be said to have met that obligation

What is the effect of non compliance?

[11] Mr Hungwe argued that the State ought not to be permitted to rely on these documents as the wording of section 382 is peremptory and not directory. I understand that to mean that the State ought to be barred from giving disclosure and consequently from relying on the photographs, videos and seizure receipts.. He maintained that the obligation of full disclosure arises at the time prescribed by section 382 of the Act and that failure to comply therewith cannot subsequently be cured, as "the ship had sailed." In his submission, Mr Hungwe argued that the State's non-compliance was incurable and therefore rendered the application a nullity. In support of these submissions, he cites *Shumba and Anor v The Zimbabwe Electoral Commission SC 11-08* and *Jensen v Acavalis 1993(1) ZLR 216*, where proceedings were declared a nullity as a result of non-compliance with peremptory statutory provisions.

[12] Closely related to the above argument is his submission that the accused would be prejudiced in that their constitutional right to a fair trial has been violated referring this court to section 69, 70(1)(c) and 86(3)(e) the Constitution of Zimbabwe (the Constitution). Mr Hungwe argued that permitting the State to effect service of the outstanding materials at this stage would occasion prejudice to the accused persons, as they would be deprived of adequate time within which to properly prepare their defence. He further submitted that the accused had already filed their defence outline and summary and has already showed their hand.



[2] See section 382(3) and (4)

[13] Ms Munyeriwa argued that such non-compliance did not automatically invalidate the proceedings. She maintained that, because the trial had not yet commenced, it remained procedurally competent to serve the outstanding documents on the defence and that the irregularity is capable of being cured through the formal service of the outstanding materials upon the accused persons and the granting of adequate time within which they may amend their defence outline particularly in view of the fact that the defence outline is not before the court. She submitted that it is common course that trial commence when an accused pleads to the charged put to him/her.

[14] She submitted further that disclosure in criminal proceedings ought not to be approached in the same manner as disclosure in civil proceedings, where a litigant may strictly rely on a procedural misstep by the opposing party to gain an unfair advantage. In support of this proposition, reliance was placed on *East River Investments (Private) Limited & Anor v Mujaya N.O S.C 52-21* and *R v Evans 1934 CPD 232.*

[15] She submitted that the defence outline, though filed, had not yet been placed before the court, thereby affording the accused persons the opportunity to make the necessary amendments. In support of that submission, the court was referred to the case of *State v Kurotwi & Anor HH 36-12*

[16] She submitted that the State is alive to the right of an accused to a fair trial and hence the application is brought before plea and proposing that the accused be given the full ten days to respond. She also submits that the documents relate to existing information and no new issues are raised. She argues that it is evident that State is not *mala fide*.

ANALYSIS

Is the non-compliance fatal

[17] Mr Hungwe read the following citation from *Jensen v Acavalos*, supra:

> "The notice of appeal, being bad for non-compliance with the rules, was not cured by the filing on 3 January 1990, of grounds of appeal without a prayer. Indeed, even if the grounds of appeal filed on 3 January 1990 had contained a prayer for relief, it would not have been effectual in validating the defective notice of appeal.
>
> The reason is that a notice of appeal which does not comply with the rules is fatally defective and invalid. That is to say, it is a nullity. It is not only bad but incurably bad, and, unless the court is prepared to grant an application for condonation of the defect and to allow a proper notice of appeal to be filed, the appeal must be struck off the roll with costs: *De Jager v Diner & Anor* 1957 (3) SA 567 (A) at 574 C-D."

The next paragraph reads as follow:

> In *Hattingh v Pienaar* 1977 (2) SA 182 (O) … at 183, KLOPPER JP held that:
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> " a fatally defective compliance with the rules regarding the filing of appeals cannot be condoned or amended. What should actually be applied for is an extension of time within which to comply with the relevant rule. With this view I most respectfully agree; for if the notice of appeal is incurably bad, then, to borrow the words of

HIGH COURT OF ZIMBABWE
Criminal Division
ISSUED
05 Mar 2026
HCHCR977/26
HARARE
JUDICIAL SERVICE COMMISSION

> LORD DENNING in *McFoy v United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I, 'every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse'." [my emphasis]"

[18] In *Moyo* v *Zvoma* SC28/10, at pg 14, the court made the following remarks:

> "It is quite clear from the above authorities that failure to comply with peremptory language of a Statute can lead to a nullity."

Equally, there are decisions of this Court wherein it has been held that non-compliance with peremptory statutory provisions does not necessarily lead to a nullity. See *Sterling Products International Ltd v Zulu* 1988 (2) ZLR 293 (S) and the cases referred to therein.

The above authorities can be reconciled on the basis that the use of peremptory language is one of a number of indicators of the legislative intent where such intent is not explicitly stated. This obviously is a departure from the principle of strict exaction of compliance with the wording of the Statute that I referred to earlier. In my view, the use of peremptory language, such as the words "shall" or "must" in a Statute is no longer conclusive evidence of the intention of Parliament but remains cogent evidence of such intention."

[19] It is my considered view that this matter is not one where the court ought to follow strict exaction of compliance as suggested by Mr Hungwe. There are other considerations which apply herein. In the present matter, although section 382 is couched in peremptory terms, the Act does not expressly stipulate that non-compliance therewith renders proceedings a nullity. In line with the approach articulated in *Shumba & Anor v The Zimbabwe Electoral Commission supra*, where the legislature has not prescribed the consequences of non-compliance, it falls upon the court to determine whether such non-compliance is fatal, having regard to the purpose of the provision and the question of prejudice.

[20] Furthermore, this is a criminal matter and this court is enjoined to consider both 'the protection of the accused right to a fair trial and the preservation of justice'[3] Section 177 of the Act makes provision for the court to order the delivery of particulars of any matter alleged in the indictment summons or charge either before or at the trial. The taking of photographs, the seizure of items and the indication video are mentioned in the indictment. The accused have therefore been aware of the evidentiary items. It is not clear why the State omitted to serve these items prior to date which the trial was scheduled to commence. It is however to their credit that this request comes before the accused was asked to plead.

[21] In the East River case the court cited the following by Ebrahim J in *S* v *Mugwachari and Ors* HH119/85

> "The laps may be due to in part lack of appreciation of the role of a judicial officer. In R v Evans 1934 CPD 232, it was held that a criminal matter could not be regarded in the same light as a civil matter "where one party is fully entitled to take advantage of a wrong move made by the other party"…In terms of s218 of the Code, a judicial officer is bound to subpoena evidence which is essential to a just decision of the case. He must exercise discretion judicially

[3] East River Investments SC 52/21

HIGH COURT OF ZIMBABWE
Criminal Division
ISSUED
05 Mar 2026
HCHCR977/26
HARARE
JUDICIAL SERVICE COMMISSION

> in this regard and determine whether evidence is available and whether it is desirable and in the interests of justice to secure its production."

Prejudice to the accused right to a fair trial

[22] The accused's right to a fair trial may not be derogated from in terms of s86(3)(e). The main complaint was that the right of the accused to be given adequate time and facilities to prepare a defence would be infringed if the court were to permit the State to serve the evidentiary material on the accused at this stage i.e after they had already filed a defence outline and summary.

[23] It is my understanding from the submissions of Ms Munyeriwa that the application was to serve the evidentiary items and that the defence thereafter be granted the full ten days provided for by section 382 of the Act to amend its defence outline and summary if they so wished. In the case of *State* v *Kurotwi* HH36/12 at p 3, the court granted the application by the state to amend the indictment as there was no perceived prejudice. The court held as follows:

> "I can also perceive no prejudice or injustice that cannot be cured by a reasonable postponement to enable the accused to amend their defenses to suit the amended charge and facts." [my emphasis]

[24] It is my considered view that postponement to afford the accused adequate time to make a full defense after having been served with the evidentiary items, will cure the mischief created by the non-compliance with section 382 of the Act.

[25] The accused had already filed its Defence Outline and Summary without having had sight of these documents. It is undeniable that the failure to give disclosure prior to the filing of the accused defence outline and summary given in terms of section 66(8) may be prejudicial. Full disclosure of all evidence the State intends to use is required for the accused to exercise his right to make a full answer and defence[4]. In addition to this, section 67(1) provides that the defence outline and summary shall be received into evidence before the court upon its mere production by the prosecutor without further proof.

[26] The State argued that although the defence outline and summary have been filed, it was not before the court and that same may be amended. This court understood this to mean that it does not intend to produce the outline and summary in its current form as evidence in terms of section 67(1) but acknowledge that the accused would be entitled to file a defence outline and summary or amend it. This would level the playing field and greatly reduce the potential prejudice which the accused may suffer. The interests of justice are thus better served by providing adequate time as envision by section 382 and affording the accused the opportunity to make a full defence.

[27] The accused persons have not yet been called upon to answer to the charge, and the court remains in a position to direct proper service and to grant sufficient time for preparation or amendment of defence outlines. Any potential prejudice can therefore be ameliorated by an

[4] See S v Mawadza and 2 Ors HH765-22 at par 16

HIGH COURT OF ZIMBABWE
Criminal Division
ISSUED
05 Mar 2026
HCHCR977/26
HARARE
JUDICIAL SERVICE COMMISSION

appropriate order. To bar the State from disclosing the evidentiary material and from using same at the trial would not assist this court to arrive at a just decision. The proper remedy is the enforcement of compliance coupled with adequate safeguards to protect the accused persons' constitutional right to a fair trial.

[28] That being the case the application must succeed. It is for these reasons that the order below was made.

It is accordingly ordered as follows:

1. The application by the state to serve the photographs, the videos, and the seizure confirmation receipt(s) on the accused is granted, such to be served on or before 26 February 2026.
2. The accused is required to give an outline of their defence, if any and to supply the names of any witness(es) they propose to call in their defence together with a summary of evidence which each will give, sufficient to inform the Prosecutor General of all material facts on which they rely in their defence alternatively amend the current outline and summary filed of record.
3. The accused must send the outline and the summary or the amendment to the Prosecutor General and lodge it with the Registrar of the High Court on or before 12 March 2026.
4. The matter is postponed to 16 March 2026 at 10 a.m -27 March for trial.

National Prosecuting Authority, State's legal practitioners

Zuze Law Chambers, first and second accused's legal practitioners



